

An Act

ENROLLED HOUSE
BILL NO. 4038

By: Caldwell (Trey) and Kane of
the House

and

Hall and Haste of the
Senate

An Act relating to transportation; requiring that portions of funds be used for certain purposes; providing budgeting and expenditure limitations and procedures; providing for lapse of funds under certain conditions; making an appropriation; determining purpose of funds appropriated; providing for noncodification; providing an effective date; and declaring an emergency.

SUBJECT: Transportation

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

Of the funds appropriated to the Department of Transportation in Section 67 of Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the sum of Five Million Dollars (\$5,000,000.00) shall, under the direction of the Executive Director, be dedicated to funding projects on the 8-Year Construction Work Plan.

SECTION 2. Appropriations made by this act, not including appropriations made for capital outlay purposes, may be budgeted for the fiscal year ending June 30, 2027 (hereafter FY-27), or may be budgeted for the fiscal year ending June 30, 2028 (hereafter FY-28). Funds budgeted for FY-27 may be encumbered only through June 30, 2027, and must be expended by November 15, 2027. Any funds

remaining after November 15, 2027, and not budgeted for FY-28, shall lapse to the credit of the proper fund for the then current fiscal year. Funds budgeted for FY-28 may be encumbered only through June 30, 2028. Any funds remaining after November 15, 2028, shall lapse to the credit of the proper fund for the then current fiscal year. These appropriations may not be budgeted in both fiscal years simultaneously. Funds budgeted in FY-27, and not required to pay obligations for that fiscal year, may be budgeted for FY-28, after the agency to which the funds have been appropriated has prepared and submitted a budget work program revision removing these funds from the FY-27 budget work program and after such revision has been approved by the Office of Management and Enterprise Services.

SECTION 3. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

There is hereby appropriated to the Department of Transportation from any monies not otherwise appropriated from the General Revenue Fund of the State Treasury for the fiscal year ending June 30, 2027, the sum of Two Hundred Sixty-six Thousand Dollars (\$266,000.00) or so much thereof as may be necessary to perform the duties imposed upon the Department of Transportation by law.

SECTION 4. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

Funds appropriated by Section 3 of this act shall be utilized as follows:

Two Hundred Sixty-six Thousand Dollars (\$266,000.00) to implement the provisions of Enrolled House Bill No. 2979 of the 2nd Session of the 60th Oklahoma Legislature.

SECTION 5. This act shall become effective July 1, 2026.

SECTION 6. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the House of Representatives the 14th day of April, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 16th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____